

SALARY ADVANCE AUTHORISATION AGREEMENT

This Salary Advance Authorisation Agreement (“the Agreement”) is entered into between:

Gemini Moon Trading 7 (Pty) Ltd t/a XL Nexus Travel (“the Company”)

and

(Employee Full Name & ID Number) (“the Employee”).

Employee Physical Address: _____

B1. PURPOSE

B1.1 This Agreement regulates the advance of a portion of earned salary to the Employee prior to the normal payroll date and the subsequent recovery of such amount.

B1.2 A salary advance is a discretionary facility and does not constitute a loan, credit facility, or guaranteed benefit.

B1.3 The Employee consents to the Company processing their personal information for purposes of administering this Agreement, enforcing its terms, and pursuing lawful recovery where necessary, in accordance with applicable legislation, including the Protection of Personal Information Act.

B1.4 This Agreement constitutes the entire agreement between the parties regarding the subject matter herein and supersedes any prior discussions, representations, or understandings, whether written or oral.

B1.5 No amendment, variation, or waiver of any provision of this Agreement shall be valid unless recorded in writing and signed by both parties.

B1.6 This Facility does not constitute a credit agreement as contemplated in the National Credit Act.

B2. APPROVAL

B2.1 The granting of a salary advance is subject to prior written approval by the Directors of the Company.

B2.2 The Company reserves the right to decline any request for a salary advance without obligation to provide reasons.

B2.3 The Company reserves the right to decline future salary advance requests where prior advances have not been repaid in accordance with this Agreement.

B3. ADVANCE DETAILS

Amount of Advance: R _____

Date of Advance Payment: _____

Payroll Month of Recovery: _____

B4. RECOVERY TERMS

B4.1 The Employee acknowledges that the salary advance represents payment of remuneration in advance of the normal payroll date. _____

B4.2 The Employee hereby authorises the Company, in terms of section 34 of the Basic Conditions of Employment Act, to deduct the full amount of the salary advance from the Employee's salary in the payroll month specified above. _____

B4.3 Unless otherwise expressly approved in writing by the Directors, the salary advance shall be recovered in full from the same month-end payroll cycle in which the advance was granted. _____

B4.4 Where insufficient remuneration is available to recover the full amount in the designated payroll cycle, the Employee authorises the Company to recover any outstanding balance from the next available payroll payment. _____

B4.5 A certificate signed by a Director or authorised Finance representative of the Company reflecting the amount outstanding shall constitute prima facie proof of the indebtedness and the amount due, unless the contrary is proven. _____

B4.6 The Employee acknowledges that the debt recorded in this Agreement constitutes a valid, liquid, and enforceable obligation. _____

B5. TERMINATION OF EMPLOYMENT

B5.1 If the Employee resigns or their employment terminates for any reason prior to full recovery of the advance, the outstanding balance shall become immediately due and payable. _____

B5.2 The Employee authorises the Company to deduct any outstanding balance from final remuneration, subject to section 34 of the Basic Conditions of Employment Act. _____

B5.3 Where final remuneration is insufficient to settle the outstanding balance, the Employee shall complete a Settlement Agreement Upon Termination form, failing which the Company may pursue lawful recovery. _____

B6. DOMICILIUM AND NOTICES

B6.1 The Employee chooses the residential address and email address provided in this Agreement as their domicilium citandi et executandi for all purposes arising from this Agreement.

B6.2 Any notice or demand sent to such address or email shall be deemed to have been received:

- (a) on the date of delivery if delivered by hand;
- (b) three (3) business days after posting by registered mail; or
- (c) on the date of transmission if sent by email.

B6.3 The Employee undertakes to notify the Company in writing of any change of address or email.

B7. NO WAIVER

B7.1 The granting of a salary advance does not create a precedent, ongoing entitlement, or expectation of future advances.

B8. GOVERNING LAW

B8.1 This Agreement shall be governed by the laws of the Republic of South Africa, and the parties consent to the jurisdiction of the Magistrates Court having jurisdiction, notwithstanding that the amount claimed may exceed the normal jurisdiction of such court.

B9. ACKNOWLEDGEMENT

The Employee confirms that:

- The advance is voluntary and requested by the Employee. _____
- The deduction has been explained and is understood. _____
- Written authorisation is granted in terms of section 34 of the BCEA. _____

Signed at _____ on this _____ day of _____ 20____.

For the Company:

Name: _____

Title: _____

Signature: _____

Employee:

Name: _____

Signature: _____